STATE OF MINNESOTA DISTRICT COURT

COUNTY OF HENNEPIN FOURTH JUDICIAL DISTRICT
Case Type: Other Contracts

Yibiao Lu and Jie Hu, Plaintiffs, vs. Fire Insurance Exchange, by and through its attorney-in-fact Fire Underwriters Association, doing business as Farmers Insurance, Defendant.	Case Type: Contract Court File No. 27-CV-26-11606 Judge: Jamie Anderson **DEFENDANT'S RESPONSE TO PLAINTIFFS' FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS**

TO: Plaintiffs Yibiao Lu and Jie Hu, 17756 George Moran Drive, Eden Prairie, MN 55347:

Defendant, Fire Insurance Exchange's (hereinafter "FIE") Response to Request for Production of Documents from Plaintiffs, Yibiao Lu and Jie Hu (hereinafter "Plaintiffs"), stating under oath as follows:

REQUEST NO. 1: The entire claim file for The Claim (claim number 7007986837-1-1), including every document, photograph, audio file, video file, item of ESI, system or case note, audit-log entry, billing record, and internal communication of any kind.

RESPONSE: FIE objects to Request No. 1 to the extent that it seeks attorney-client or privileged work product prepared in anticipation of litigation, to the extent that is seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced in the link below. Due to technical difficulties, Defendant will supplement its document production with the redacted Full Claim file/Claim notes as soon as possible.

REQUEST NO. 2: The entire claim file for the 2020 Claim (claim number 3013539499-1), including the Xactimate estimate, the settlement notice, the building-loss worksheet, all line items, and any explanation for any line item shown as "work not completed" or the equivalent.

RESPONSE: FIE objects to Request No. 2 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. FIE also objects to Request No. 2 because Plaintiffs were provided with relevant estimates and the settlement notice as part of the 2020 claim. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 3: All inspection notes, photographs, measurements, sketches, drafts, and field communications by Nicholas Brau relating to the September 6, 2024 inspection of The Property, including any record created before, on, or after that date that references the inspection (including text messages, paper notes, and electronic case notes). If no responsive document exists, produce the records-retention policy under which any such record was destroyed or not preserved and all documents identifying each person who has had custody of any such record.

RESPONSE: FIE objects to Request No. 3 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 4: All documents in Your possession, custody, or control constituting, reflecting, or relating to the work of Hancock Claims Consultants on The Claim, including the narrative report, all field notes, measurement sheets, inspection-application data, and the complete photograph set produced in native form; all communications between Hancock and You; Hancock's billing records and invoices; and the retention agreement, statement of work, or service agreement under which Hancock was engaged. If You contend any responsive document is not within Your possession, custody, or control, identify it and identify the person who has it. Plaintiffs contend that documents held by Hancock Claims Consultants in connection with its engagement by You are within Your possession, custody, or control within the meaning of Minn. R. Civ. P. 34.01. If You disagree, state the basis for that position and produce the retention agreement, engagement letter, and service agreement governing Your access to those documents.

RESPONSE: FIE objects to Request No. 4 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 5: All documents in Your possession, custody, or control constituting, reflecting, or relating to Prieve Engineering, LLC File #241008, including the engagement letter, retainer, and statement or scope of work; billing records and invoices; field notes from the October 9, 2024 inspection; every draft of the report and the final report; all peer reviews; all communications between Prieve and You, including any comment on, or instruction to revise, any draft; and any impact-force, terminal-velocity, hail-size-threshold, or other engineering calculation, analysis, model, or worksheet underlying the report's conclusions. If You contend any responsive document is not within Your possession, custody, or control, identify it and identify the person who has it. Plaintiffs contend that documents held by Prieve Engineering, LLC in connection with its engagement by You are within Your possession, custody, or control within the meaning of Minn. R. Civ. P. 34.01. If You disagree, state the basis for that position and produce the retention agreement, engagement letter, and service agreement governing Your access to those documents.

RESPONSE: FIE objects to Request No. 5 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit, and to the extent that FIE does not possess responsive documents. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 6: The complete set of native, original digital photographs taken at the October 9, 2024 Prieve inspection (not limited to the curated Appendix A), with all EXIF and other metadata preserved and with the original file names, together with any captioning worksheet or database used to caption those photographs.

RESPONSE: FIE objects to Request No. 6 to the extent that it is requesting documents from a third-party over whom FIE has not control, to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit, and to the extent that FIE does not possess responsive documents. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 7: All documents and communications reflecting the decision to scope the Prieve Engineering engagement to "windows only," including all documents showing who made the decision and when, whether the decision preceded or followed Plaintiffs' reports of damage to siding, downspouts, flashing, and doors, and any request by Prieve to expand the scope.

RESPONSE: FIE objects to Request No. 7 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs' claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 8: The underlying weather-research file that Prieve used, including all data sources consulted in support of the statement that the most recent hail in Eden Prairie was reported in 2020.

RESPONSE: FIE objects to Request No. 8 to the extent that it is requesting documents from a third-party over whom FIE has not control, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit, and to the extent FIE does not possess responsive documents. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 9: Documents sufficient to show, for each Minnesota residential property claim involving hail on which You or any Farmers affiliate engaged Prieve Engineering, LLC from January 1, 2020 through the present: the date of the engagement, the Prieve file number, the scope of work assigned, the amount paid to Prieve, and the causation conclusion Prieve reached. This request does not seek the underlying claim files, and Plaintiffs will agree that any production under this request be made subject to a protective order and with the names and addresses of other insureds redacted.

RESPONSE: FIE objects to Request No. 9 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

REQUEST NO. 10: All written claims-handling policies, supervisor training materials, and standard operating procedures in effect from July 13, 2024 forward governing hail claims, the evidentiary treatment of non-engineer evidence, the application of exclusions, and the relationship between adjusters and field claim supervisors. This request includes all document- and record-retention and destruction policies applicable to adjuster inspection notes, draft correspondence and draft denial letters, and claim-system audit-trail records in effect from July 13, 2024 forward.

RESPONSE: FIE objects to Request No. 10 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

REQUEST NO. 11: All communications from January 1, 2020 through the present sent, received, or authored by Nicholas Brau, Bradlee Monson, Christian Dudley, Peter Pietila, or any person to whom Bradlee Monson reported during the handling of The Claim, that use the phrases "engineer's

report only," "engineer required," "non-engineer evidence," "peer review," or any substantively similar phrase, whether or not the communication concerns The Claim.

RESPONSE: FIE objects to Request No. 11 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

REQUEST NO. 12: Any log, report, tracking record, or database entry reflecting the acceptance or rejection of evidence not prepared by a licensed engineer on Minnesota hail claims from January 1, 2023 through the present.

RESPONSE: FIE objects to Request No. 12 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 13: Any reservation-of-rights letter ever issued on The Claim.

RESPONSE: FIE objects to Request No. 13 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 14: Documents sufficient to show the date on which any litigation hold, preservation notice, or document-preservation instruction concerning The Claim or this action was issued, the persons to whom it was directed, the categories of documents and data it directed to be preserved, and the date and substance of each update to it. Plaintiffs do not by this request seek the text of any communication from counsel, and expressly reserve the right to seek the notice itself upon a showing that responsive documents have been lost or destroyed.

RESPONSE: FIE objects to Request No. 14 to the extent that it seeks attorney-client or privileged work product prepared in anticipation of litigation, to the extent that it seeks mental impressions or legal conclusions, to the extent that is seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the

burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced herewith.

REQUEST NO. 15: All correspondence with the appraisal panel — Greg Tomes, John Foster, and umpire Wade Roos — including engagement letters, scoping communications, methodology communications, and post-award correspondence.

RESPONSE: FIE objects to Request No. 15 to the extent that it seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 16: All documents in Your possession, custody, or control that You sent to or received from umpire Wade Roos, or that constitute any portion of his working file for the September 12, 2025 appraisal, including notes, calculations, photographs, measurements, drafts, worksheets, invoices, and communications. If You possess no report, estimate, worksheet, calculation, or methodology document from Mr. Roos supporting the $12,800 Replacement Cost Value or the $6,400 Actual Cash Value, state that expressly in Your response.

RESPONSE: FIE objects to Request No. 16 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 17: All documents in Your possession, custody, or control constituting or relating to the appraiser file of Greg Tomes, including his notes, photographs, measurements, methodology, drafts, invoices, and billing records; the report of Greg Tomes referred to in Your answer to paragraph 36 of the Complaint, the "appraiser's position" on the windows that You forwarded to Plaintiff Lu on September 18, 2025, the "appraiser's response" attached to Your September 19, 2025 letter, and every draft of each; all communications between You and Mr. Tomes concerning The Claim or the appraisal, including all communications concerning the scope of the appraisal and the items to be evaluated; the agreement or engagement under which he was appointed; and all documents reflecting his reasons for not signing The Appraisal Award. If You contend any responsive document is not within Your possession, custody, or control, identify it and identify the person who has it. Plaintiffs contend that documents held by Greg Tomes in connection with his appointment as Your appraiser are within Your possession, custody, or control within the meaning of Minn. R. Civ. P. 34.01. If You disagree, state the basis for that position and produce the retention agreement, engagement letter, appointment documents, and any service or fee agreement governing Your access to those documents.

RESPONSE: FIE objects to Request No. 17 to the extent that it is overly broad and vague, duplicative, to the extent that is seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, to the extent that Plaintiffs possess the requested documents, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 18: All correspondence with the Minnesota Department of Commerce regarding Complaint ID 93547.

RESPONSE: FIE objects to Request No. 18 to the extent that it seeks attorney-client or privileged work product prepared in anticipation of litigation, to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced herewith.

REQUEST NO. 19: Documents sufficient to identify every person who had any role in The Claim, with each person's name, title, dates of involvement, and contact information.

RESPONSE: FIE objects to Request No. 19 to the extent that it is duplicative, to the extent that it seeks discovery that is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 20: The complete claims-portal record for The Claim, including all messages, document uploads, and status entries.

RESPONSE: FIE objects to Request No. 20 to the extent that it seeks attorney-client or privileged work product prepared in anticipation of litigation, to the extent that is seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 21: The complete audit trail for The Claim file, including every entry, edit, deletion, or supplementation, with the timestamp and user for each, together with documents sufficient to describe the audit-logging, versioning, and deletion-tracking capabilities of each system in which The Claim was maintained, and the retention period applicable to those logs.

RESPONSE: FIE objects to Request No. 21 to the extent that it is overly broad and vague, does not define "audit trail," to the extent that is seeks proprietary or confidential documents or attorney or work product privilege documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 22: All prior-claim inspection records for The Property, including the inspection records for the 2014, 2015, and 2020 claims.

RESPONSE: FIE objects to Request No. 22 to the extent that it is overly broad and vague, to the extent that is seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 23: The complete October 13, 2020 Farmers Insurance photograph log for The Property — identified in the Prieve Report at page 2 of 7 among the documents reviewed ("Inspection Photos dated October 13, 2020") and relied upon at page 4 of 7 ("We note this chip is visible in prior photo logs from Farmers Insurance dated October 13, 2020") — with file names and metadata, together with any captions or inspector notes identifying each observation in that log and any internal worksheet showing which observations were translated into 2020 Xactimate line items and which were not.

RESPONSE: FIE objects to Request No. 23 to the extent that it seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 24: The Farmers homeowners' policy form and endorsements J6898, J6944, MN079, and MN080 applicable to The Policy on the loss date, together with all available drafting history and any underwriting or explanatory bulletins concerning endorsement J6944.

RESPONSE: FIE objects to Request No. 24 to the extent that it is cumulative and duplicative, and to the extent that the same has already been produced to Plaintiffs prior to the lawsuit and again with FIE's Initial Disclosures.

REQUEST NO. 25: All documents reflecting any request by You for, or receipt by You of, City of Eden Prairie building-permit records concerning The Claim.

RESPONSE: FIE objects to Request No. 25 to the extent it is vague and unclear as to what building-permit records it seeks.

REQUEST NO. 26: All documents identifying the manufacturer and date stamps of the windows at The Property and the operational status of Semco Windows and Doors as of the date of The Appraisal Award.

RESPONSE: FIE objects to Request No. 26 to the extent that it seeks irrelevant discovery that it is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 27: All insurance, reinsurance, excess, or third-party-administrator agreements that may cover a judgment in this action, produced pursuant to Minn. R. Civ. P. 26.01.

RESPONSE: FIE objects to Request No. 27 to the extent that it is vague and unclear as to what documents Plaintiffs are requesting. The certified policy has been produced.

REQUEST NO. 28: Documents sufficient to show, for each Minnesota residential property claim involving hail on which You or any Farmers affiliate engaged Hancock Claims Consultants from January 1, 2020 through the present: the date of the engagement, the scope of work assigned, the amount paid, and whether the inspection reported damage. This request does not seek the underlying claim files, and Plaintiffs will agree that any production be made subject to a protective order and with the names and addresses of other insureds redacted.

RESPONSE: FIE objects to Request No. 28 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is overly broad and vague, to the extent that it is not reasonably limited in scope or time, to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

REQUEST NO. 29: All internal Farmers communications referring to The Appraisal Award from September 12, 2025 through the date of production.

RESPONSE: FIE objects to Request No. 29 to the extent that it seeks attorney-client or privileged work product prepared in anticipation of litigation, to the extent that is seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 30: All drafts, comments, and revisions of the September 3, 2024 and November 4, 2024 denial letters, and any internal audit, quality-control review, or supervisor sign-off concerning those denials.

RESPONSE: FIE objects to Request No. 30 to the extent it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 31: All policies, procedures, guidelines, manuals, training materials, and standard operating procedures in effect from July 13, 2024 forward governing the retention, review, evaluation, and acceptance or rejection of third-party inspection and engineering reports on property or hail claims, including any quality-control or peer-review process for such reports.

RESPONSE: FIE objects to Request No. 31 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

REQUEST NO. 32: All documents reflecting Your review, evaluation, approval, or adoption of the Hancock Claims Consultants and Prieve Engineering reports in The Claim, including internal review notes, checklists, sign-offs, and communications.

RESPONSE: FIE objects to Request No. 32 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 33: All estimates prepared, received, or reviewed by You in connection with The Claim or The 2020 Claim, produced in native format with the estimate identifier, price-list version, and revision history intact; all documents stating or reflecting Your methodology for calculating actual cash value and depreciation on losses to windows, siding, and exterior components, including depreciation schedules, useful-life tables, and any condition or age adjustment applied; and all documents showing the derivation of the $6,400 Actual Cash Value stated in The Appraisal Award, including any worksheet, calculation, or communication allocating that figure between the awarded windows.

RESPONSE: FIE objects to Request No. 33 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it seeks documents authored by a third-party over whom FIE has no control, to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 34: The complete underwriting file for Policy 98055-49-65 from application through the October 22, 2023 renewal, including the application and all supporting materials; all underwriting, renewal, or loss-control inspections of The Property and all photographs taken in connection with them; all underwriting guidelines applied to The Property; all documents reflecting the condition of The Property as recorded by You at any time before July 13, 2024; and all documents evidencing the attorney-in-fact relationship between Fire Insurance Exchange and Fire Underwriters Association, including the subscription agreement and power of attorney applicable to Policy 98055-49-65.

RESPONSE: FIE objects to Request No. 34 to the extent that it seeks documents protected by the attorney-client or work product privileges, proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 35: The Declarations page for Policy 98055-49-65 in force on July 13, 2024; the complete policy, including all forms and endorsements, as delivered to Plaintiffs at the October 22, 2023 renewal; all documents evidencing delivery of the policy and of any endorsement to Plaintiffs; and all documents showing the Coverage A limit in force on July 13, 2024, the calculation of the $17,720 windstorm and hail deductible, and the manner in which that deductible applies to a loss under The Policy.

RESPONSE: FIE objects to Request No. 35 to the extent that it is cumulative and duplicative, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit, and to the extent the certified policy has already been provided to Plaintiffs. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 36: All audio recordings, voicemail messages, transcripts, call notes, and telephone logs relating to The Claim or The 2020 Claim, including the February 3, 2025 telephone call between Bradlee Monson and Yibiao Lu and the February 10, 2025 voicemail from Nicholas Brau, together with all documents stating Your retention policy for call recordings, voicemail messages, and telephone logs.

RESPONSE: FIE objects to Request No. 36 to the extent that it seeks proprietary or confidential information, irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 37: All documents You contend support (a) each affirmative defense asserted in Your Answer; (b) each denial of an allegation of the Complaint; and (c) any contention that hail did not cause damage to any window or exterior component of The Property beyond the windows designated "F 1.7" and "B 1.2" in The Appraisal Award. This request also seeks all documents described in, or responsive to, Your disclosures under Minn. R. Civ. P. 26.01(a).

RESPONSE: FIE objects to Request No. 37 to the extent that it seeks attorney-client or privileged work product, to the extent that it seeks mental impressions or legal conclusions, to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 38: All documents You contend establish that The Appraisal Award resolved The Claim, in whole or in part, including all documents identifying each window, sash, or exterior component that the appraisal panel evaluated and each that it did not evaluate; all documents reflecting the scope of the matters submitted to the panel; and all documents supporting Your Second Affirmative Defense.

RESPONSE: FIE objects to Request No. 38 to the extent that it seeks mental impressions and legal conclusions, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that Plaintiffs possess the requested information since they are the party that demanded appraisal and identified the scope thereof, to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures, including the policy and demand for appraisal and appraisal award, and those documents produced herewith.

REQUEST NO. 39: All documents identifying, keying, indexing, or cross-referencing the window designations "F 1.7" and "B 1.2" used in The Appraisal Award, including any window inventory, code key, schedule, worksheet, photograph index, or estimate line-item list prepared or

used by You, by Greg Tomes, by John Foster, by Wade Roos, by Pure Construction, or by any person acting on Your behalf, and all communications in which either designation appears.

RESPONSE: FIE objects to Request No. 39 to the extent that it is cumulative and duplicative, to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, responsive documents have been produced per the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 40: All documents stating or reflecting Your interpretation, guidance, training, or claims-handling practice concerning Endorsement J6944 (Limited Matching of Undamaged Property) and concerning the matching obligation addressed in *Cedar Bluff Townhome Condominium Ass'n v. American Family Mut. Ins. Co.*, 857 N.W.2d 290 (Minn. 2014), as applied to Minnesota property claims, including any guidance concerning claims in which the original manufacturer of the damaged property has ceased production or the original product is no longer available.

RESPONSE: FIE objects to Request No. 40 to the extent that it seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

REQUEST NO. 41: All documents concerning water intrusion, water entry, window leaks, staining, mold, or resulting damage at The Property from July 13, 2024 through the present, including claim entries, communications, inspections, evaluations, photographs, and vendor or engineering observations. This request also seeks all documents supporting (a) Your November 4, 2024 statement that "[o]ur investigation found the condition of the window and components to be from wear/tear," and (b) Conclusion 3 of the Prieve Report (page 7 of 7), that "reported water leakage and water entry at windows is unrelated to hail or any other catastrophic causation"; and all instructions or communications given to Plaintiffs concerning mitigation, repair, or protection of The Property from further damage.

RESPONSE: FIE objects to Request No. 41 to the extent that it is cumulative and duplicative, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 42: All documents supporting, reflecting, or relating to the allegation in paragraph 14 of Your Answer that Plaintiffs "attempted to direct the claim-handling process by adamantly advising Hancock Claims Consultants that the only thing that needed to be inspected was the windows on the inside where they were leaking," including the assignment, work order,

or instructions under which Hancock Claims Consultants was engaged for the August 29, 2024 inspection; every record of any communication between Plaintiffs and Hancock Claims Consultants or You on or about August 20, 2024; every field note, inspection-application entry, or report entry by Jayden Grimm or any other Hancock representative recording any statement by Plaintiffs about the scope of the inspection; and every document identifying the person who first recorded that statement and the date it was recorded. If no document records any such statement by Plaintiffs, state so expressly.

RESPONSE: FIE objects to Request No. 42 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see documents produced herewith.

REQUEST NO. 43: All documents describing, establishing, or governing the "peer review" process referred to in paragraph 24 of Your Answer, under which an engineer's report submitted by an insured "would be peer reviewed," including any policy, procedure, guideline, checklist, or training material describing that process, the persons or vendors who perform it, and the criteria applied; and all documents reflecting Your receipt, review, evaluation, peer review, or disposition of each of the following submissions by Plaintiffs: (a) the January 31, 2025 appeal package; (b) the February 10, 2025 second response; and (c) the May 28, 2025 submission delivered through agent Peter Pietila, including every claim-system note, communication, or review record identifying who reviewed each submission, on what date, and with what result. If no document reflects any review of any of those submissions, state so expressly as to each.

RESPONSE: FIE objects to Request No. 43 to the extent that it seeks confidential or proprietary documents, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, to the extent that Plaintiffs have already been provided with the requested information, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced herewith.

REQUEST NO. 44: Each document identified in the "ACTIVITIES" section of the Prieve Report as having been reviewed in connection with that evaluation, including the Farmers Insurance Photo Log dated September 11, 2014; the Farmers Insurance Estimates dated September 16, 2014 and July 15, 2015; the Building Loss Worksheet dated October 7, 2021; the Farmers Insurance Letter and Estimate dated February 18, 2022; the Window Condition Summary; and all weather records, together with all documents showing who provided each such document to Prieve Engineering, LLC and when.

RESPONSE: FIE objects to Request No. 44 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and

to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 45: All documents concerning any inspection, estimate, valuation, or claim activity at The Property between January 1, 2021 and July 12, 2024, including the Building Loss Worksheet dated October 7, 2021 and the Farmers Insurance Letter and Estimate dated February 18, 2022, and including any claim number under which such activity was recorded.

RESPONSE: FIE objects to Request No. 45 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 46: All claim outcome correspondence, letters, or claim-system entries dated September 4, 2024 concerning The Claim. If no such document exists, state so expressly and identify the document You intended to refer to in Your answer to paragraph 53 of the Complaint.

RESPONSE: FIE objects to Request No. 46 to the extent that it seeks attorney-client or privileged work product, to the extent that it seeks mental impressions or legal conclusions, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, any responsive and non-privileged documents have been see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 47: All documents concerning any report by Plaintiffs of water intrusion, leaking, or active damage at The Property on or about October 28, 2025, including the communication itself, every claim-system entry recording its receipt, and every internal or external communication concerning it. If no such document exists, state so expressly.

RESPONSE: FIE objects to Request No. 47 to the extent that it seeks attorney-client or privileged work product prepared in anticipation of litigation, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, any responsive non-privileged documents are produced herewith.

REQUEST NO. 48: Every communication from You to Plaintiffs, and every claim-system entry, sent or created after 11:59 p.m. on July 11, 2025 and on or before August 3, 2025, responding to or concerning Plaintiffs' July 11, 2025 email about claim deadlines, together with all documents

identifying its author and the date and manner of its transmission. If You contend that a communication sent on or before July 11, 2025 constitutes Your response to Plaintiffs' July 11, 2025 email, identify that communication by date, time, author, and recipient. If no responsive communication exists, state so expressly.

RESPONSE: FIE objects to Request No. 48 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit, and to the extent that the information requested was previously provided to Plaintiffs. Notwithstanding and without waiving said objections, any responsive non-privileged documents are produced herewith.

REQUEST NO. 49: All documents concerning any inspection, photograph, measurement, or evaluation, by You or by any person acting for You, of the window on the rear elevation of Plaintiffs' attached garage located immediately south of the window depicted at photographs A-213 through A-217 of Photo Appendix A, at any time from October 22, 2014 through the present. If no such document exists, state so expressly.

RESPONSE: FIE objects to Request No. 49 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 50: All communications between any Farmers claim employee and Peter Pietila, any employee of his agency, or any other Farmers agent or agency, concerning The Claim, The 2020 Claim, The Policy, the appraisal, or The Appraisal Award, from July 13, 2024 through the present — including the October 14, 2025 email identified in Your answer to paragraph 36 of the Complaint — together with the complete agency file for The Policy.

RESPONSE: FIE objects to Request No. 50 to the extent that it is cumulative and duplicative, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

REQUEST NO. 51: All documents describing, constituting, or governing the photograph-labeling convention used in the inspection application or software by which Hancock Claims Consultants documented the August 29, 2024 inspection of The Property, including any template, pick-list, drop-down menu, or predefined caption set from which captions in the form "Window Wrap North Damaged - No" and "Siding South Damage - No" were generated; any field guide,

manual, instruction, or training material governing when an inspector selects or applies such a caption; and documents sufficient to show whether the numeric suffix appended to a repeated caption (for example, "- No_2" through "- No_20") is assigned automatically by the application or entered by the inspector. Plaintiffs contend that documents held by Hancock Claims Consultants in connection with its engagement by You are within Your possession, custody, or control within the meaning of Minn. R. Civ. P. 34.01. If You contend otherwise, state the basis for that position and identify the person who has the documents.

RESPONSE: FIE objects to Request No. 51 to the extent that it seeks proprietary or confidential documents from a third-party, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

REQUEST NO. 52: Documents sufficient to show, for each of Christian Dudley, Nicholas Brau, Bradlee Monson, Zorphlon Miller, Jillian Bell, and Peter Pietila, the legal entity that employed or engaged that person at the time of that person's involvement in The Claim or The Policy, including the entity named as employer or principal on any offer letter, assignment or staffing record, claim-system or portal user record, electronic mail signature block, business card, or license, appointment, or registration filing. This request does not seek compensation, performance, disciplinary, or benefits records.

RESPONSE: FIE objects to Request No. 52 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

REQUEST FOR PRODUCTION NO. 53: Documents sufficient to show the legal name, form, and state of organization of the insurance agency through which Peter Pietila acted in connection with The Policy, together with the agency, producer, or appointment agreement under which that agency or Mr. Pietila was appointed by or contracted with Fire Insurance Exchange or any entity affiliated with Fire Insurance Exchange, and all amendments to it in force between October 22, 2014 and the present.

RESPONSE: FIE objects to Request No. 53 to the extent that it seeks proprietary or confidential documents from a third-party, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that it is not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit.

All documents referenced herein can be accessed via the following link:

5490-FIE 0843-1803-link expires-11-21-2026

KENNEDY LAW FIRM P.C.

Dated: October 21 , 2026

By: /s/ Mary J. Baskfield
Kevin J. Kennedy (#193872)
Mary J. Baskfield (#0314572)
7616 Currell Blvd., Suite 270
Woodbury, MN 55125
Telephone: 651-256-5000
Em: kkennedy@kennedylf.com
Em: mbaskfield@kennedylf.com
Counsel for Defendant Fire Insurance Exchange